Guest Lecture Privacy, Data Protection & GDPR

TDT4237

Presentasjon:
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Aboveit

Background

In a world of rapid development of new technology, which is used in ever-changing contexts, we face several challenges. A key challenge is how to safeguard privacy in digital products and services while maintaining accessibility and user-friendliness.

The EU General Data Protection Regulation (GDPR) has been part of the Norwegian Personal Data Act for almost 7 years. However, the GDPR is often experienced as complex and not very accessible. Furthermore, many experience that it is unclear what is a necessary level of privacy assessments and associated documentation.,

My experience shows that it is possible to establish a structured, "easily" accessible and transparent approach to how to ensure that digital services comply with the Personal Data Act.

The guest lecture focuses on raising awareness of what should be done by privacy assessments with associated documentation and what their role should typically be in this context.

About Me – Knut Soelberg

- **Master's degree in computer science – University of Oslo**
- I have most of my career been a **consultant**, but also been a researcher at the Norwegian Computing Center (NR)
- **Project management, agile digital product development, change management and privacy and data protection are my special areas**
- I have mostly been a Project manager and advisor (government contractor) in major software development projects in the public sector
- **I have helped customers to comply with the GDPR for several years**
  - **Based on that experience, I started lecturing data protection courses**
- During 2020-2024 (5 years), I was a project manager (government contractor) at the Norwegian Digitalisation Agency (Digdir) helping them to modernize Id-porten and their digital joint solutions (fellesløsningene)
- Today, I'm helping the Norwegian Civil Affairs Authority (Sivilrettsforvaltningen) improving the portal that supports digital applications for **free legal aid**

Aboveit - Key numbers

2023
NOK 160 million in revenue

135 +
Employees

34
Average age

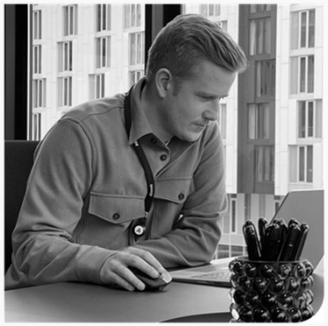
28%
Women

75+ diferent customers

Consultancy services

Architecture & Cloud Services

Usabillity & Design



Project Management & Testing and Test Management

System Development & Integrations

Practical information

- Guest Lecture: 12.15-14.00 including 1 break
- The slides used in this lecture is distributed
- **Questions: We might have time for a few questions**

The presentation is quite comprehensive so that it can be used as a reference later

Vocabulary (English - Norwegian): https://www.datatilsynet.no/en/regulations-and-tools/vocabulary/

Agenda

Lecture

- Privacy, Data Protection and GDPR Basics
- How to Describe the processing of Personal Data
- How to Assess compliance with the Principles of Data Processing
- Product Teams and Data Protection by design

Objectives: Lecture

- **Understand and be able to apply GDPR's basic concepts and principles**
- Understand what should be described and assessed regarding data protection during digital product development
- **Be aware of that privacy and data protection is an interdisciplinary discipline**
- Be able to identify issues related to privacy and data protection that must be raised by the customer/product owner for further (legal) clarification and authorization

- **NB! This lecture will not cover risk assessments which is also an important topic regarding privacy and data protection**

Data Protection and GDPR Basics

Introduction: Privacy and GDPR

- What is Privacy about?
  - **Privacy is about the right to privacy and the right to decide when someone can use your own personal data**
- In EU/ECC, Privacy is Regulated by the General Data Protection Regulation (GDPR) as well as relevant special laws related to the various applications / domains
- There is a lot of confusion regarding GDPR - Do you think that
  - Privacy is basically only about information security?
  - It is almost impossible to a privacy assessment and write a formal DPIA document?
  - A product team automatically develops products supporting “Data Protection by Design”?
- **Data Protection is interdisciplinary and can be made understandable**
  - Data Protection by Design can become an inherent part of the product development without too much effort

Processing personal data – What is important?

To process personal data as part of the business' services and processes correctly in accordance with the law

The law does not distinguish between
- what is processed by IT systems
- and
- what is processed manually

The goal is
- not to avoid using personal data,
- but to use personal data correctly
- in the correct context

Challenge

- Privacy and data protection is regulated by the Personal Data Protection Act / GDPR
  - Requires that the business and its suppliers have
    - employees who understand and can apply the basic concepts and privacy principles defined in the GDPR
- **To ensure high quality data protection assessments, you need relevant domain expertise!**
- Insufficient understanding of how to comply with the GDPR results in
  - Unilateral focus on IT systems and IT security
  - Insufficient focus on the business domain
  - Insufficient authorization by relevant "business areas“ and their managers

Lack of understanding of how to ensure good Data Protection results in **false safety and lack of compliance** with the GDPR

The Norwegian Personal Data Act (Personopplysningsloven)

Available from Lovdata

- https://lovdata.no/dokument/NL/lov/2018-06-15-38 (in Norwegian)
- https://lovdata.no/dokument/NLE/lov/2018-06-15-38 (in English)
- GDPR in English: https://eur-lex.europa.eu/eli/reg/2016/679/oj/eng

Consists of 2 parts

- GDPR - General Data Protection Regulation
- Norwegian clarifications and additions

Most important parts of the EU regulation (in order of priority) when developing digital products

- I (definitions), II
- IV, III
- V

GDPR (EU regulation) - Chapter structur

I. General provisions
II. Principles
III. Rights of the data subject
IV. Controller and processor
V. Transfers of personal data to third countries or international organisations
VI. Independent supervisory authorities
VII. Cooperation and consistency
VIII. Remedies, liability and penalties
IX. Provisions relating to specific processing situations
X. Delegated acts and implementing acts
XI. Final provisions

Important Definitions and Principles

Correct understanding of important concepts and principles is crucial to ensure correct data protection assessments

Important Definitions

GDPR article 4

- Personal Data (Personopplysning)
- Processing (Behandling)
- Special categories of personal data (Særlige kategorier opplysninger)
- Controller (Behandlingsansvarlig)
- Processor (Databehandler)
- Recipient (Mottaker utlevering)
- The Data Subject (den registrerte)

Principles relating to processing of personal data (Personvernprinsipper)

GDPR article 5

- Lawfulness, Fairness and Transparency (Lovlighet, rettferdighet og åpenhet)
- Purpose Limitation (Formålsbegrensing)
- Data Minimization (Dataminimering)
- Accuracy (Riktighet)
- Storage Limitation (Lagringsbegrensing)
- Integrity & Confidentiality (Integritet/konfidensialitet
- Accountability (Ansvarlighet)

Important Definitions GDPR – Personal Data

GDPR Article 4. Definitions

For the purposes of this Regulation:

1. *‘**personal data**’ means any information relating to an identified or identifiable natural person (‘data subject’); **an identifiable natural person is one who can be identified, directly or indirectly**, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or **to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person***

In other words:

Personal Data includes for example

Social Security Number (fnr) og contact information (adress, phone, email)

Important! Personal Data also includes all kind of information relatet to a person (data subjects). Personal data incudes behavioral patern, facts, results and health information

If you put together enough indirect personal data, you will be able to find the relevant natural person

Flights: the following is also personal data for a passenger on a given flight

3 pieces of luggage checked in, security checked and loaded on board on flight xx at yy.zz

Student loans: the following is also personal data for a given borrower/applicant

Application xx rejected <date>

Loan balance as of <date>: kr: yyyy

Important Definitions GDPR - Processing

GDPR Article 4. Definitions
For the purposes of this Regulation:
2. '**processing**' means any ***operation or set of operations*** which is performed on personal data or on sets of personal data, whether or not by automated means, such as ***collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction***

Processing - What does it mean?
The Personal Data Act applies to any form of processing of personal data

Processing includes manual paper-based handling as well as processing using IT IT-systems

Remember, storage is one of a large number of different types of processing (ref. definition of processing)

Processing - example:

Air travel: passengers checks in baggage, airport workers verify baggage before loading it onto the flight, onboading of passengers onto a flight
Student loans: Process loan application, request loan installments for given loan customer

Important Definitions GDPR - Special Categories of Personal Data

From GDPR Article 9.1
These categories of personal Data is defined as “special categories of personal data”

- racial or ethnic origin
- political opinions
- religious or philosophical beliefs
- trade union membership
- the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person
- data concerning health
- data concerning a natural person’s sex life or sexual orientation

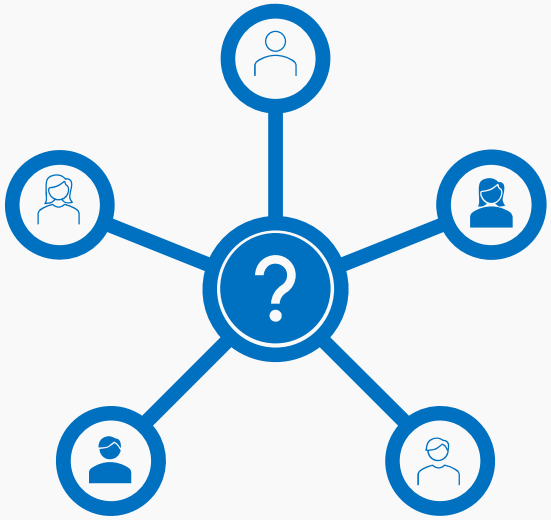
Important!

GDPR article 9.1 concludes that processing of Special Categories of Personal Data shall be prohibited

However, GDPR article 9.2 defines when article 9.1 shall not apply
These are strict exceptions (we will briefly walk through these exceptions later)

Important Definitions GDPR – Rolles

Roles is an important topic, however in this lecture we will not elaborate further



The controller
means the natural or legal person, public authority, agency or other body which, alone or jointly with others ***determines the purposes of the processing of personal data and the means to be used***

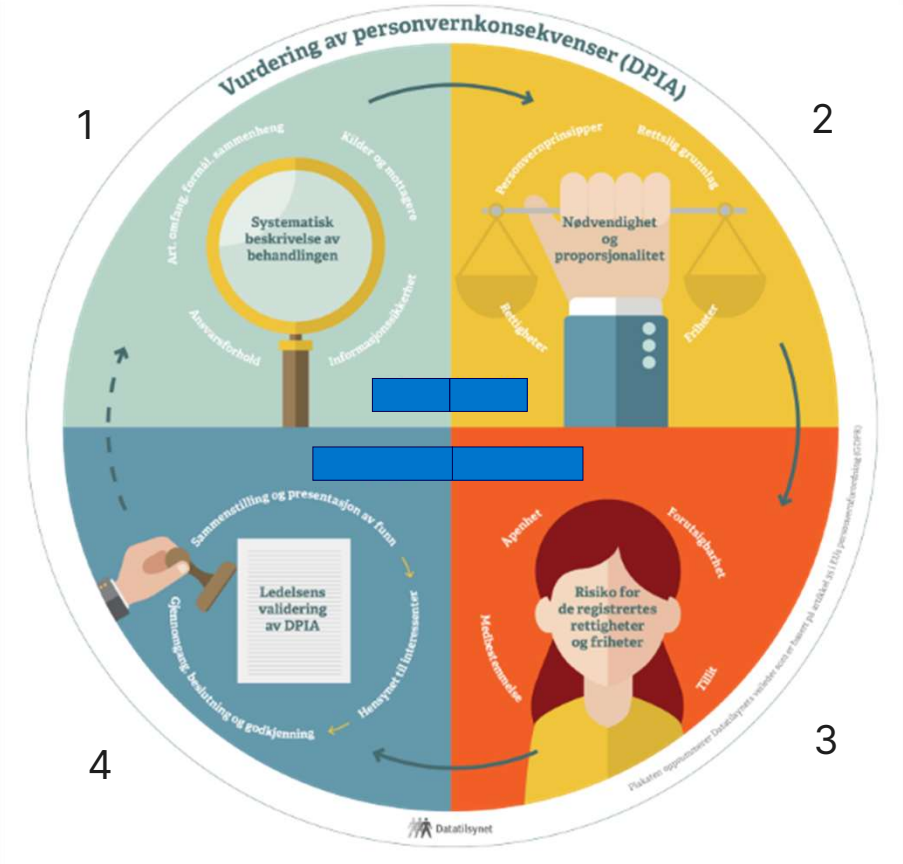
Data processor
means a natural or legal person, public authority, agency or other body which **processes personal data on behalf of the controller**

Recipient
means a natural or legal person, public authority, agency or another body, to **which the personal data are disclosed, whether a third party or not**

Data Protection Impact Assessment (DPIA)

- GDPR Article 35 describes when a formal DPIA must be prepared and what it must contain
  - A DPIA is a formal document, but GDPR places few requirements on such a document beyond its overall content
- Many businesses find that preparing a DPIA is a big job that is demanding to complete
  - My experience: A DPIA can be done short and simple
  - Too many businesses probably do not prepare a DPIA when necessary
- **Important!**
  - ***Assessing compliance with the principles relating to processing of personal data as well as doing risk assessments is always necessary according to GDPR***
    - Not only when a formal DPIA document is needed!

Data Protection assessments - DPIA (when “high risk”) Iterative process as part of product development



The Norwegian Data Protection Authority highlights the following 4 steps in an overall process for DPIA

1. Describe the processing of Personal Data
2. Assess compliance with the principles relating to processing of personal data
3. Assess the risks to rights and freedoms of the data subjects
4. Summary of measures and validation

Remember this is an **iterative process!**

Always performed: Step 1 , 2 and 3 apply to all processing of personal data. However, when “high risk – DPIA”, there are more requirements regarding the documentation of the assessments, ref. [GDPR article 35]

How to describe the Processing of Personal Data

which is an important basis for assessing compliance with the principles relating to processing of personal data and risk assessments

How to describe the processing of Personal Data

New or changed service / product – what should be identified and described?

Topics

- ***The purpose of the processing of Personal Data***
- The nature and context of processing (High level functional description)
- The scope of the processing
- Sources for the collection of personal data
- Recipients of personal data
- Responsibilities (Who is Controller and processors?)
- High level technical description

- An important **success criterion** is to ensure short, precise descriptions at an appropriate level of detail, at least initially
  - ***The descriptions should be understandable to 3. parties***
  - ***The descriptions should be gradually elaborated over several iterations***
- **NB! The description of the processing of personal data will be the basis for assessing compliance with the principles relating to processing of personal data and to do risk assessments.**

The Purpose of processing of personal data

Purpose = end-user-oriented service

A purpose is typically a (sub)process or service that uses personal data

- Can consist of one or more processings (process steps)
- Should have a business focus
- Start by defining "coarse-grained" purposes
- Based on increased insight, split into smaller and more specific purposes during the development cycle if needed

Identifying appropriate* purposes *is a very important success criterion for good Privacy and Data Protection

  - **Domain expertise** is required to identify a “good” purpose
  - Purpose is not the same as an IT system
  - An IT system can support multiple purposes

Example: The description of the processing – Registration for internal event

Purpose	The nature and context of processing (High level functional description)	Categories of personal data per category data subjects
Registration for internal events within Bouvet	Participants can search for upcoming internal events by category or follow a link. ***Participants register for an event that is open for registration.*** If the event serves food, the participant can "check the box for have food allergies". The participant will then receive a dialog to give explicit consent to state food allergies and then which food allergies. It is also possible to "centrally" give express consent to state food allergies and which food allergies apply. If this has been done and the participant is to register for an event with food, the participant can choose to check the box for "show registered food allergies to organizer" so that the organizer takes your dietary needs into account. ***Managers and other employees can create and manage an event.*** Only the organizer can see what food allergies have been registered. Only the individual organizer can change the event information for their events. Everyone in the company can see who has registered for the various events, as this is, among other things, a means of increasing participation in the various events.	**Event participant (employee):** • Contact information (retrieved from internal IT-systems including master data) • Organizational information (organizational unit, employee number - retrieved from internal IT-systems including master data) • Registration information (event name, event time, registered/not registered, comments regarding registration, any food orders) • Food allergies (if relevant) **Event manager/organizer (manager/employee):** • Contact information (retrieved from internal solutions with master data) • The events he/she manages incl status information

Testdata	The scope of the processing	Responsibilities	Sources for the collection of personal data
The product team members uses their own personal data as a basis for test data – food allergies are syntetic. Routines for the scope and deletion of test data have been established.	Event registration for an established event applies to all organizational units and their employees. Bouvet has over 2,000 employees, spread across several units throughout the country. In one year, the employees make more than 10.000 sign-ups	Bouvet is the data controller (and data processor). Microsoft (Norway) is sub data processor (Microsoft Azure).	No personal data is collected from external parties, only from internal systems (master employee data) as well as the employee that register for an event

Recipients	High level technical description
No personal data is disclosed to external parties other than Microsoft Azure which is being used to run applications and store data in a data center in Norway. Regarding food orders, only the number of people with the various food allergies registered with the food supplier is disclosed.	IT systems and infrastructure: The solution is web-based and internally developed using .net and runs in the company's tenant in Microsoft Azure (data center in Norway) using SQL-db and Azure AD for authentication, authorization. Comment: This description should ideally be expanded with some more detailed information.

How to Assess compliance with the principles relating to processing of personal data?

Key principles relating to processing of personal data - Overview

Understanding these principles is essential for complying with GDPR

1. Lawfulness, fairness and transparency
2. Purpose limitation
3. Data minimization
4. Accuracy
5. Storage limitation
6. Information security

Accountability – this is an overall management responsibility

Purpose limitation – how to comply (1/2)

Important: focus on identifying end-user-oriented services – these will typically be good candidates as appropriate purposes

- Use the time and the iterations needed to ensure that you have identified purposes that are appropriate

Verify that personal data processed for the purpose is not used in any context other than what is necessary and lawful

- For example: A bank can process personal data for banking purposes, but they can not (without further ado) process the same personal data for insurance purposes
  - Nor can they without necessary lawfulness transfer the personal data to partners that have other purposes (***which is sadly too common on the Internet today***)
- Ensure that the personal data and functionality is only available to those who contribute to achieve the purpose, in other words: “to make the service work”

Purpose limitation – how to comply (2/2)

Role-based access control is a good basic measure to ensure purpose limitation

- Both in terms of end users, APIs, operational tasks, etc.
- The different user groups should only have access to the information and services that are relevant to perform their responsibilities related to the purpose
- Don't forget: This also applies to roles related to operation and management, including monitoring and logs

Verify that all processing included in the purpose are necessary and lawful

- Transfers of personal data to recipients and 3. parties
- Collection of personal data(using APIs) from 3. parties
- The use of data processors including public cloud services

Transferring of personal data to recipients without a **valid purpose and lawful legal basis** is probably the **most common reason** why businesses receive **fines** related to violations of the Personal Data Act.

Data minimization – how to comply

Verify that only information that is necessary for the purpose (service) is collected

- This is not always obvious, but domain knowledge helps to identify what's necessary
- It is important that user dialogue is well-designed and does not collect more personal data from the user than what is necessary to deliver the service
- Minimize the use of free text fields
- It is important that the APIs used do not expose more information than necessary
- If commercial APIs are used, and these expose too much information, ignore excess information, do not store this. In the long term, the API should be improved

Example: For a purpose related to processing applications and allocating social housing, what information is necessary for the case manger to be able to state a decision? Is it sufficient for the applicant to only state the number of children in the household, or is it necessary to provide a lot of details about each of the children?

Accuracy – how to comply

- The principle requires that **the personal data is correct and that the result of the processing of personal is correct**
  - The quality of data is important – ***do validation of input***
  - However, it is also important to ensure the quality of specifications, code, development process and testing to ensure correct processing and correct "derived" personal data
  - ***Collecting personal data from authoritative external sources*** such as the National Population Register (Folkeregisteret) is an example of an appropriate quality-enhancing measure
- **The principle requires that the personal data is correct in a year or two as well**
  - This will typically demand automation of a periodic verification process
  - Online banks, among other, handle this by explicitly asking the customer to verify and update various types of basic information, e.g. once a year.

Storage limitation – how to comply (1/2)

- Different categories of personal data processed within the same purpose may have different storage periods
  - This must be explicitly considered by the product owner/business on a case-by-case basis
  - In some cases, there will also be requirements in special laws, e.g. the Archives Act
  - Also remember different types of logs
- Don't consider storage time only for normal cases
- The storage time must also consider exceptions - e.g. complaints, mishandling, fraud attempts, etc.

Storage limitation – how to comply (2/2)

- Assessing storage time is difficult in many cases
  - Start handling this early
  - Ask for legal and/or business assistance is often a good idea
- In many cases, there is a need for different types of analyzes and statistics
  - Often this does not require personal data
  - ***Periodically anonymize relevant personal data for analyzis/statistics***, and then delete relevant personal data according to the storage limitation
  - Anonymization is not necessarily easy; it might be easy to fall into an "anonymization trap"
- Link to Datatilsynets supervisor for anonymization: anonymisering av personopplysninger

Information security – how to comply

- Technical and organizational measures to ensure personal data security, risk-based confidentiality, integrity and availability, must be assessed and described
  - This includes technical measures such as authentication and authorization mechanisms, logging/traceability, integrity checks, zone models/zero-trust models, encrypted communication and/or storage, etc.
- ***The level of the measures should be risk based*** and relates to the results of the
  - The nature of the processing
  - The risk analysis regarding the rights and freedom of the Data Subjects
  - Cost-benefit assessments – GDPR does not require data controllers to "shoot sparrows with cannon"
- **Also remember organizational measures** such as. routines for deliveries, use of security standards, security policy, code reviews, security tests, DevSecOps
- ***Example risk-based measures***
  - For some purposes, username and password are ok as authentication mechanism
  - while other applications like health and banking require the use of electronic ID (eID) “Level of Assurance High”

Personal data as testdata

- The use of production data for testing is considered as processing of personal data
  - provided that the production data includes information about actual persons
- The use of synthetic test data is preferable from a privacy perspective if the production of synthetic test data is possible with an acceptable cost/benefit
  - Tenor testdatasøk is a tool from Digdir for finding synthetic test data across test environments in Norway
- Possible approach when production data must be used for testing
  - Justify and document why (nature of the processing and, if applicable, purpose)
  - Ensure good practices for storage time, sharing, and access control for the test data

Lawfulness, fairness and transparency - how to comply

Complying to fairness and transparency is achieved by ensuring:

Real co-determination

- The data subject must have a choice, be given information, be given access, and so on

Real transparency

- Explain complex treatments and expected results when comparing personal data with other data sets and so on

Predictable treatment

This means

- User-friendly service
- Uniform case management (where relevant)
- Easily accessible and understandable privacy policy
- Functions/procedures for fulfilling the rights of data subjects

Lawfulness should typically be handled by the product owner who should get the necessary assistance at an early stage if need to assess the legal basis for the purposes

- Remember that a legal basis must be identified for both the processing of ordinary personal data and special categories of personal data
- Several legal bases also require references to relevant special laws
- ***Remember that consent is one of many legal bases, but which is currently often misused***
- Do not confuse consent as a legal basis for a specific purpose (service) with consent for Cookies

Lawfulness of processing General Personal Data

GDPR article 6

Legal basis

a) consent

b) the performance of a contract to which the data subject is party

c) compliance with a legal obligation

d) vital interests

e) public interest or in the exercise of official authority

f) legitimate interests – Requires a **balancing of interests**

c) and e) is also to be linked to relevant laws or regulations

Remember: Consent is one of many possible legal bases,

- but is in many cases abused where there are better alternatives

Lawfullnes of processing of special categories of personal data - GDPR article 9.2 (Simplified version – for overview only)

a) explicit consent
b) fulfil obligations and exercise special rights in the area of labour law, social security law and social law
c) protect the vital interests of the data subject or of another natural person;
d) foundation, association or other non-profit body whose objectives are of a political, religious or trade union nature
e) personal data that it is obvious that the data subject has made public
f) establish, exercise or defend legal claims
g) The processing is necessary for reasons of important public interest, on the basis of Union or Member State law, which must be proportionate to the objective pursued, be compatible with the essence of the right to the protection of personal data and ensure appropriate and specific measures to protect the fundamental rights and interests of the data subject
h) preventive medicine or occupational medicine to assess an employee's work capacity, in connection with medical diagnostics, the provision of health or social services, the treatment or management of health or social services and systems
i) public health considerations
j) the processing is necessary for archival purposes in the public interest, for the purposes of scientific or historical research, or for statistical purposes;

The Rights of the Data Subject

What does that mean?

- The freedoms of data subjects are assessed in relation to the ETS no 5
- The rights of data subjects are described in GDPR article 12-23 and includes
  - Simple and good information about the processing must be provided to the data subjects
  - Right of access
  - Right to rectification and deletion (be forgotten)
  - Right to restriction of processing
  - Right to data portability
  - Right to protest
  - Right not to be subject to decision based solely on automated individual decisions
    - Exceptions in relation to the implementation of agreements, e.g. allocation of student loans
- This means that treatment should not reduce these rights and freedoms
- Personal data that goes astray can reduce these rights and freedoms

European Convention on Human Rights and Fundamental Freedoms – ETS no 5

- **The right to privacy** and protection of communications
- The right not to be discriminated against
- Freedom of thought, belief and religion
- Freedom of expression and information

What does this mean for your product?

- How the rights of the data subjects are fulfilled, and which rights are relevant will vary from case to case
- Some kind of self-service might be appropriate, but in many cases, handling this by using manual routines provides the best cost/benefit

Accountability

- Accountability
  - Means that the data controller and data processors, i.e. management, are responsible for ensuring that necessary privacy assessments are carried out and documentation is established
  - In practice, the team or project, typical has the operational responsibility

Product Teams and Data Protection by Design

The product team
Who should be lead in terms of data protection by design?

- **Product/Service Owner**
- Project manger/team leader
- Technical responsible / architect
- Functionally responsible / service designer

Additional representatives if necessary

Legal clarifications

Privacy-by-design as part of the product development should be a part of an "agile journey", but unfortunately it is often not default as of today!

How to implement Data Protection by design in a Product

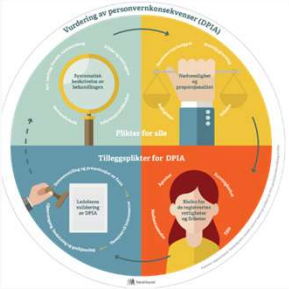
The Product Team should

- Identify a first draft of the purposes early
  - Refine the purposes gradually according to the product's roadmap
- Focus on compliance with the principles relating to processing of personal data as an inherent part of the Product Development
- For each purpose when ready: Identify measures for each principle as part of the team's specification process - assess risk when relevant
- The measures should be elaborated at an appropriate level as part of the product’s epics and user stories

data protection and Product Development Process

Analysis of needs – Business case | During product development | In front of deployment of new release

- Privacy assessments as an inherent part of agile product development
  - Initial assessments early
  - Then gradual elaborate according to the product's roadmap
  - Relevant technical measures are gradually identified, implemented and documented
- Only updating formal DPIA for releases that introduce new processing of personal data or new measures
  - Continuously update the data protection documentation as part of the product documentation
  - In the case of frequent releases, most of the releases will not require updating of the data protection documentation



Thank you for inviting me!

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- Includes articles in Norwegian elaborating the topics presented in this lecture

Additional slides

When do we need a formal DPIA document?

How to validate if “High Risk”?

Assessments if "high risk" and the need to do a complete DPIA

Certain types of processing of personal data are considered to involve a more serious interference with privacy than others because

- The personal data processed are of a particularly sensitive nature
- How the personal data are processed constitutes a particular interference with the rights and freedoms of data subjects

If “high risk”,
GDPR sets requirements for formal documentation of the assessments

- Important to early consider whether "high risk" or not
- There is a list of criteria's used to evaluate if “high risk” or not

Check list – “high risk” or not

A Complete formal DPIA is needed if 2 or more criteria's are met

Does the processing of Personal data include

1. Evaluation or scoring
2. Automated-decision making with legal or similar significant effect
3. Systematic monitoring of the data subjects
4. Sensitive data or data of a highly personal nature
5. Data processed on a large scale
6. Matching or combining datasets
7. Data concerning vulnerable data subjects
8. Innovative use or applying new technological or organizational solutions
9. Prevent data subjects from exercising a right or using a service or a contract

Source: Guidelines on Data Protection Impact Assessment (DPIA)

DPIA - Example

Case «Registration for an internal event in a company»

Introduction case

- A large company (2500 employees) has a solution for registration for internal events
- At some of these events, food is served
  - Then it is important to take into account those participants (employees) who have food allergies
- Thus, we must do a complete DPIA because more than 1000 people will use the solution during a year
- This is a relatively simple solution also in terms of processing personal data, but it is still a good case for ***assessing compliance with the privacy principles***

The description of the processing – Registration for an internal event at Bouvet

Purpose	The nature and context of processing (High level functional description)	Categories of personal data per category data subjects
Registration for events within Bouvet	Participants can search for upcoming events by category or follow a link. Participants register for an event that is open for registration. If the event serves food, the participant can "check the box for have food allergies". The participant will then receive a dialog to give explicit consent to state food allergies and then which food allergies. It is also possible to "centrally" give express consent to state food allergies and which food allergies apply. If this has been done and the participant is to register for an event with food, the participant can choose to check the box for "show registered food allergies to organizer" so that the organizer takes your dietary needs into account. Managers and other employees can create an event. Only the organizer can see what food allergies have been registered. Only the individual organizer can change the event information for their events. Everyone in the company can see who has registered for the various events, as this is, among other things, a means of increasing participation in the various events.	**Event participant (employee):** • Contact information (retrieved from internal IT-systems including master data) • Organizational information (organizational unit, employee number - retrieved from internal IT-systems including master data) • Registration information (event name, event time, registered/not registered, comments regarding registration, any food orders) • Food allergies (if relevant) **Event manager/organizer (employee):** • Contact information (retrieved from internal solutions with master data) • The events he/she manages incl status information

Testdata	The scope of the processing	Responsibilities	Sources for the collection of personal data
The product team members uses their own personal data as a basis for test data – food allergies are syntetic. Routines for the scope and deletion of test data have been established.	Event registration for an established event applies to all organizational units and their employees. Bouvet has over 2,000 employees, spread across several units throughout the country. In one year, the employees make more than 10.000 sign-ups	Bouvet is the data controller (and data processor). Microsoft (Norway) is sub data processor (Microsoft Azure).	No personal data is collected from external parties, only from internal systems (master employee data).

Recipients	High level technical description
No personal data is disclosed to external parties other than Microsoft Azure which is being used to run applications and store data in a data center in Norway. Regarding food orders, only the number of people with the various food allergies registered with the food supplier is disclosed.	IT systems and infrastructure: The solution is web-based and internally developed using .net and runs in the company's tenant in Microsoft Azure (data center in Norway) using SQL-db and Azure AD for authentication, authorization. Comment: This description should ideally be expanded with some more detailed information.

Registration for an internal event – Legal basis

Legal basis

- Processing of ordinary personal data: GDPR Article 6.1.b - fulfilling an agreement to which the data subject is a party.
- Processing of special categories of personal data: GDPR Article 9.2.a - explicit consent (applies to the treatment of food allergies)

- **US Cloud Services**
  The use of Microsoft Azure even if your applications is deployed in Microsofts Norwegian data centers may result in the transfer of personal data to the United States for some of the processing for shorter or longer periods. In addition, the United States has a law called the Cloud Act, which gives American intelligence authorities the opportunity to order American suppliers to also disclose information from their customers in data centers outside the United States (i.e. in Norway and Europe, for example). Since July 2023, EU has had an adequacy decision stating that transfers of personal data to the United States from the EU/EEA are lawful, provided that the enterprise receiving the personal data is registered as an approved enterprise (Data Privacy Framework). Microsoft is listed as an approved business in this context.
    - NB! The Data Privacy Framework might be canceled by EU in the future – enterprises now need to establish an exit strategi

Handling registration for internal events in a large company

Assessment of compliance with the Privacy Principles: Proposed solutions (1/2)

Purpose Limitation:
Personal data collected to implement the purpose "Registration for events internally in a company" is not used in other contexts. Databases and APIs have access control so that these cannot be used in other contexts to retrieve information.
However, please note that the attendee list for an event is available to all employees via the regular user interface. In this context, there is a need for routines and to raise awareness that employees do not use participant lists from an event in any context other than to plan and improve the event implementation and the event solution.

Data minimization:
Only necessary information is collected about the participants of an event in order to be able to plan and hold a given event.
Food allergies that a participant chooses to state in relation to an event with food service are also only available to the organizer.
The organizer of an event with food service summarizes and anonymizes food orders manually.
In the order of food handed over to the supplier, the organizer includes the number of people with food allergies and which allergies. A registration includes a comment field where the participant can comment. The user interface contains a simple user guide that pops up if the participant wants to post a comment. The user guide specifies which types of comments are relevant and that personal information must not be provided in the comment.

Correctness:
Contact and organizational information is collected from internal systems in the company – master data.

Storage Limitation:
Stated food allergies for a participant associated with an event are deleted after 2 months. This provides room to handle any deviations with the food supplier.
The list of participants for an event is deleted after 1 year - this provides opportunities to establish experiences for the organizers in relation to participation.
The event itself is not deleted.

Handling registration for internal events in a large company

Assessment of compliance with the Privacy Principles: Proposed solutions (2/2)

Information security:
The solution is currently considered to comply with this principle given the nature of the treatment. The solution is based on a modern architecture and widespread solution choices in terms of authentication, authorization and traceability/logging for this type of solution. The security measures are also in accordance with the company's internal security policy. The event system is considered an administrative support system.
Code verification is done on a regular basis through the whole lifecycle. Security testing conducted prior to the launch of the service. Application operation is in-house in accordance with the company's application operations policy.

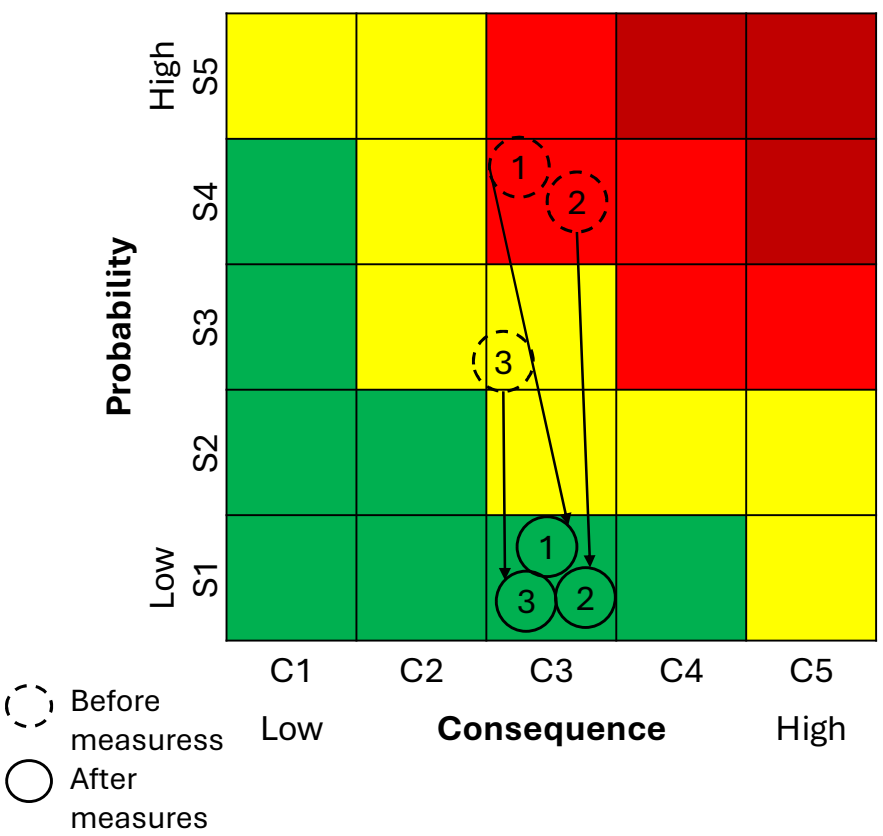
Fairness and transparency: The solution is simple, predictable and informative to use. A simple informative privacy policy is easily accessible.

The rights of the data subjects are complied with. Participants can use event solution to easily look up which events they are registered for or have participated in previously (until this is deleted). The participant can also end (unsubscribe) participation in each event until the event is started. Other rights of data subjects are not relevant in this context.
The freedoms of the data subjects are complied with, in this context the right to privacy applies. This means that if the participant has stated food allergies, this will only be available to the organizer who will arrange for food ordering.

Accountability:
The data privacy impact assessment (DPIA) is authorized by the data controller, i.e. the quality manager/data protection officer and the internal delivery manager. Relevant data processing agreements have been established.

Summary - Necessity and proportionality: The scope of the personal data collected and the processing of these is considered necessary to achieve the purpose and is proportionate to the type of purpose/processing as discussed above. The privacy principles are considered to have very good compliance for the purpose in question.

Assessment of the risks to the rights and freedoms of data subjects



No	Risks	Recommended measures
1	Food allergies for participants are shared with more than the organizer – can affect participants' privacy	Guidelines are prepared for the organizers so that they compile and anonymize food allergies as part of the food order to the supplier
2	Inappropriate rights management means that more people than the organizer can administer the event and gain access to the participants' information about food allergies	Ensure that best practice access management routines is used
3	The solution has not addressed known and widespread vulnerabilities in modern web solutions	Review of the code in relation to known vulnerabilities, possibly combined with security testing

Summary Measures and Validation

No	Recommended measures	Responsible	Deadline
1	Guidelines are prepared for the organizers so that they compile and anonymize food allergies as part of the food order to the supplier	Product owner registration for internal events	Within when 1. release is deployed for operation
2	Best practices for access management routines	Responsible access management	Within when 1. release is deployed for operation
3	Review of the code in relation to known vulnerabilities, possibly combined with security testing	Teamlead registration for internal events	Within when 1. release is deployed for operation

Authorization	
Working environment committee (AMU)	OK <Signature and date>
Internal delivery manager	OK <Signature and date>
Quality Manager/ Data Protection Officer	OK <Signature and date>